

JUDGMENT SHEET
LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Writ Petition No.3978 of 2024

Izzat Khan **V/S** *Additional District Judge etc.*

JUDGMENT

Date of hearing	10.02.2025
Petitioner(s) by	Mr. Hassan Raza Pasha, ASC.
Respondent(s) by	Mr. Shahid Latif Hashmi, Advocate for Respondent No.3.

JAWAD HASSAN, J. By invoking the constitutional jurisdiction of this Court under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “*Constitution*”), the Petitioner has called in question the vires of judgment dated 24.10.2024 passed by Additional District Judge, Rawalpindi whereby appeal filed by the Petitioner against judgment dated 28.11.2023 passed by Special Judge (Rent), Gujar Khan was dismissed. These concurrent findings of fact have been assailed through this constitutional petition.

2. Precisely the facts necessary for adjudication of instant petition are that the Respondent No.3 filed ejectment petition before Special Judge (Rent), Gujar Khan seeking eviction of the Petitioner on the ground of default and personal need as she is owner of disputed shop through registered sale deed No.1079 dated 05.07.2018 and subsequent mutation No.4190 dated 30.10.2018 purchased from one Sajid Mehmood. The ejectment petition was resisted by the Petitioner, who filed an application for leave to contest denying the relationship of landlord and tenant on the ground that he purchased the disputed shop from Sajid Mehmood through agreement to sell on 01.08.2014 and

mutation No.4240 dated 30.03.2019 and now he is in possession of the same and question to pay the rent to the Respondent No.3 does not arise. By way of order dated 19.09.2022 leave to contest was allowed in favour of the Petitioner. From the divergent pleadings of the parties, the Special Judge (Rent), Gujar Khan framed issues to the following effect:-

ISSUES

1. *Whether petitioner is sole owner of shop and respondent obtained the shops from the petitioner on rent therefore, respondent is liable to be evicted from the rented premises and petitioner is entitled for order as prayed for? OPA*
2. *Whether ejectment petition of the petitioner is not maintainable in present form and liable to be rejected? OPR*
3. *Relief.*

After framing of issue, both the sides produced their respective evidence and on completion of the same ejectment petition was allowed vide judgment dated 28.11.2023. The Petitioner, feeling aggrieved from the said judgment preferred an appeal under Section 28 of the Punjab Rented Premises Act, 2009 (the “*Act*”) before the Additional District Judge, Gujar Khan, which was also dismissed vide judgment dated 24.10.2024, hence this petition.

3. Learned counsel for the Petitioner *inter alia* argued that both the impugned judgments are illegal and the same are based on misreading and non-reading of evidence; that the Petitioner fully established the factum of taking the disputed shop on rent from original owner on 01.08.2014 for a period of ten years and later on purchasing the same vide mutation No.4240 dated 30.03.2019; that the Petitioner further established that he never remained tenant of the Respondent No.3 but the same has not been taken into consideration by the Courts below.

4. Conversely, learned counsel for Respondent No.3 controverted the stance of the Petitioner by supporting the impugned judgments passed by the lower Appellate Court and Special Judge (Rent), Gujar

Khan that the same have been passed pursuant to proper appreciation of the facts and circumstances of the case.

5. I have heard learned counsel for the parties and gone through the available record.

6. As already observed that the Respondent No.3 while claiming herself owner/landlord of the disputed shop moved an ejectment petition under Section 15 of the “Act” for eviction of the Petitioner on the grounds of default in payment of rent and personal need. The Petitioner, while submitting his reply denied the relationship of landlord and tenant and pleaded that disputed shop was purchased by him from original owner namely Sajid Mehmood during the continuance of tenancy period through mutation No.4240 dated 30.03.2019. Since the Respondent No.3 has moved the ejectment petition for eviction of the Petitioner on the ground that she is owner of the disputed shop, so primarily it was her bounden duty to prove the existence of relationship of landlord and tenant between the parties so as to vest the jurisdiction to the learned Rent Tribunal to proceed with the ejectment petition. In documentary evidence the Petitioner produced attested copy of mutation No.4140 dated 30.03.2019 as Exh.R2, attested copy of register of record of rights for the year 1998-99 of Khewat No.549 as Exh.R3, photograph as Mark-R-1 and copy of rent agreement as Mark-R2 (under objection). While the Respondent No.3 produced copy of registered sale deed No.1079/18 as Exh.P5, attested copy of sale deed No.391/19 as Exh.P6, copy of mutation No.4180 as Mark-A, copy of mutation No.4249 as Mark-B. The basic document produced by the Petitioner was Exh.R2 on the basis of which he claimed himself to be the owner of the disputed shop whereas the Respondent No.3 produced Exh.P5 in support of her claim which is the sale deed. The dispute between the parties was with regard to purchase of one marla land through two different documents on the basis of which the parties claimed themselves to be the owners. It is not disputed by the parties that one marla land was purchased by them from

original owner namely Sajid Mehmood. The learned Additional District Judge, Rawalpindi observed that:

“The document tendered by appellant was placed on record but as per Ex.A-5 respondent/petitioner purchased the property measuring one Marla from one Sajjid Mehmood through registered sale deed with specific description and with proper measurement of adjoining properties and no difference is found in description given in registered sale deed and description given by the respondent/petitioner in eviction petition and said sale was subsequently incorporated through mutation No.4190 dated 30.10.2018. On the other hand the appellant/respondent tendered mutation No.4240 dated 30.03.2019 in his documentary evidence and claimed his ownership on the basis of said mutation. But said document reveals that the appellant/respondent purchased one marla property from one Sajjid Mehmood from whole Khewat comprising of 17 kanals 11 marlas and no description was provided in it. So respondent/petitioner became owner of disputed shop through registered sale deed and subsequent mutation with proper description of property mentioned in sale deed while appellant/respondent purchased one marla land from whole Khewat without any description. Thus it was rightly observed by the Rent Tribunal that the appellant/respondent was under heavy burden to prove that his status of tenancy was converted into ownership to which he remained miserably failed. On the other hand the respondent/petitioner became owner of the disputed shop after purchasing the same from Sajjid Mehmood. The appellant/respondent was tenant of said person who remained miserably failed to discharge the onus that his status was converted from tenant to owner of disputed shop. So this issue was rightly decided in favor of respondent/petitioner and against the appellant”.

7. In view of above observation, it can safely be said that a registered sale deed, with accurate metes and bounds, when executed with due compliance of law, proper stamp duty, payment and valid title transfer from a legally competent seller, confers a valid and enforceable right upon the purchaser. Upon considering the evidence, legal principles, and arguments, this Court holds that the Respondent No.3

has acquired a better title through a duly executed registered sale deed, free from legal infirmities and the Petitioner's claim, based on a weak and legally flawed mutation, does not override the Respondent No.3's valid ownership rights.

8. As per preamble of the "Act" the purpose and object of the law is to regulate the relationship of landlord and tenant and to provide a mechanism for settlement of their disputes in an expeditious and cost-effective manner. An application for ejectment can be filed in respect of rented premises before the Rent Tribunal established under Section 16 of the "Act" for the said purpose. The jurisdiction of a Rent Tribunal is confined to the matters, arising out from a relationship of tenancy between landlord and tenant. For the said purpose the terms "landlord" and "tenant" become of significance importance. A person seeking eviction of an occupant from the premises is bound to prove that he is a landlord and the person, whose eviction is required is tenant. The term "landlord" is defined in Section 2(d) whereas "tenant" is defined in Section 2(l) of the "Act". For the purpose of convenience both the provisions are reproduced below :-

- "(d) "Landlord" means the owner of a premises and includes a person for the time being entitled or authorized to receive rent in respect of the premises;*
- (l) "Tenant" means a person who undertakes or is bound to pay rent as consideration for the occupation of a premises by him or by any other person on his behalf and includes;*
 - (i) a person who continues to be in occupation of the premises after the termination of his tenancy for the purpose of a proceeding under this Act;*
 - (ii) legal heirs of a tenant in the event of death of the tenant who continue to be in occupation of the premises; and*
 - (iii) a sub-tenant who is in possession of the premises or part thereof with the written consent of the landlord;"*

9. For proving the existence of relationship of landlord and tenant, it is thus a pre-condition that the person seeking eviction must establish

that the occupant has undertaken or bound to pay rent as consideration for the occupation of the premises to him.

10. From the available material it can safely be inferred that Petitioner has failed to bring on record any tangible evidence substantiating the non-existence of relationship of landlord and tenant between the parties. Needless to observe that the learned Rent Tribunal established under Section 16 of the “Act” can only exercise the jurisdiction with regard to rented premises if there exist relationship of landlord and tenant between the parties. The question relating to existence of relationship of landlord and tenant inter se parties is undoubtedly a question of fact which has been concurrently resolved by both the courts below in favour of Respondent No.3. It is trite law that constitutional jurisdiction cannot be resorted merely on the ground that from the available material some other view is possible. Reference in this respect can be made to “Mian UMAR IKRAM-UL-HAQUE versus Dr. SHAHIDA HASNAIN and another” (PLJ 2017 SC 1) wherein it is held that:-

“3. Leave has been granted to consider whether an order under Section 24 of the Act can be passed where the relationship of tenancy has been denied and the effect of Section 10 of the Act upon such denial. Although the legislative history of rent laws in Pakistan has been discussed in detail in Rana Abdul Hameed Talib’s case (supra), nevertheless we find it expedient to briefly reiterate the same for the sake of completeness before deciding the proposition in hand. Initially disputes inter se landlords and tenants relating to leases and tenancies were dealt with under the general law of the land i.e. Transfer of Property Act, 1872 (excluding leases of agricultural properties, dealt with by the revenue Courts) and the same were adjudicated by the Courts of general jurisdiction (see Section 9, CPC). The West Pakistan Rent Restriction Ordinance, 1959 (Ordinance) a special law was enacted for the purposes of resolution of such disputes between landlords and tenants within the purview of the provisions mentioned therein, particularly Section 13 of the Ordinance which provided the grounds upon which a tenant may be evicted by the landlord. The definitions of landlord and tenant were specifically

provided and it is clear that jurisdiction under this special law was endowed in three ways. The first was jurisdiction upon the subject matter i.e. the property was to be urban immovable property – residential or non-residential, or rented land etc. The second was jurisdiction upon the parties i.e. there was to be a relationship of tenancy, in other words the dispute must be between the landlord and tenant as defined in the law. The third was territorial jurisdiction. Therefore if any of the aforementioned requirements were not met, the Rent Controller would have no jurisdiction over the matter before him. With respect to the second type of jurisdiction: if the respondent in a rent matter denied the relationship of tenancy, a question of jurisdictional fact would arise. The doctrine of jurisdictional fact connotes that the jurisdiction of an adjudication forum is dependent upon the ascertainment and determination of certain facts. In this behalf, N.S. Bindra in the *Interpretation of Statutes Seventh Edition, 1984, p.229*, has defined “Court’s jurisdiction to determine the jurisdictional fact”, as follows:--

“Court’s jurisdiction to determine jurisdictional facts. It is well settled that a Tribunal can investigate into the facts relating to the exercise of its jurisdiction when that jurisdictional fact itself is in dispute. Where a Tribunal is invested with jurisdiction to determine a particular question, it is competent to determine the existence of the facts collateral to the actual matter which the Tribunal has to try. This power to decide collateral facts is the foundation for the exercise of its jurisdiction.”

11. Moreover, there are concurrent findings of facts recorded by both the Courts below, which apparently do not suffer from any legal infirmity. Reliance is placed on “NOOR-UN-NISA and others Versus UNITED BANK LIMITED through Authorized Officers and 2 others” (PLD 2021 Lahore 90). This Court is also not ordinarily inclined to interfere with the concurrent findings of fact recorded by the Courts below, particularly when they are not shown to be contrary to record or arbitrary or whimsical. In the instant case, apart from the bald assertions, no specific instance was brought to the notice of the Court that might be regarded as a case of misreading or non-

reading of material evidence, having direct and decisive bearing on the issues. Both the Courts exercised the jurisdiction vested in them, without violating any principles governing the assessment and appraisal of evidence.

12. Nutshell of above discussion is that both the judgments are well-reasoned having been passed after taking into consideration every aspect of the case. This petition holds no merit hence same is hereby **dismissed**.

(JAWAD HASSAN)
JUDGE

*Usman**